☒ CIRCUIT COURT ☐ DISTRICT COURT OF MARYLAND FOR Carroll County (CC)
City/County

Located at 55 North Court Street, Westminster, MD 21157
Court Address

Telephone 410-386-8720

Case No. C-06-CR-18-999999

Tracking # _____

STATE OF MARYLAND vs. María-Alejandra O'Shaughnessy (Defendant) 11/30/1978 (DOB)

PETITION FOR EXPUNGEMENT OF RECORDS
(MARIJUANA/CANNABIS RELATED OFFENSES)

1. (Check one of the following boxes) On or about 01/10/2018 (Date), I was ☐ arrested, ☒ served with a summons, ☐ or served with a citation by an officer of the Westminster Police Department (Law Enforcement Agency) at Carroll County, Maryland, as a result of the following incident: Possessing packaged cannabis with intent to distribute it.

2. Related to this incident, I was convicted of and sentenced for:

- ☐ possession of a controlled dangerous substance (marijuana) under Criminal Law Article § 5-601, and the conduct on which the charge is based is no longer a crime
- ☐ possession of cannabis under Criminal Law Article § 5-601
- ☒ possession with intent to distribute cannabis under Criminal Law Article § 5-602 and three (3) years has passed since completion of the sentence.

☐ I was also charged with other offenses associated with the same incident.

I solemnly affirm under the penalties of perjury that the contents of this petition are true to the best of my knowledge, information, and belief.

Signature of Attorney	Attorney Number	Date	Signature of Defendant	Date
Printed Name			María-Alejandra O'Shaughnessy (Printed Name)	
Address			1188 Upper Coastal Crossing Road, Apt 14B (Address)	
City, State, Zip		Telephone	Westminster, MD 21157-2214 (City, State, Zip)	410-555-0199 (Telephone)
E-mail		Fax	maria.oshaughnessy@example.org (E-mail)	Fax

This form contains Restricted Information.

☒ **CIRCUIT COURT** ☐ **DISTRICT COURT OF MARYLAND FOR** Carroll County (CC)
City/County

Located at 55 North Court Street, Westminster, MD 21157 Telephone 410-386-8720
Court Address

Case No. C-06-CR-18-999999

IN THE MATTER OF: State of Maryland vs. María-Alejandra O'Shaughnessy
Petitioner/Plaintiff Respondent/Defendant

REQUEST FOR WAIVER OF COSTS
(Md. Rule 1-325)

Unless you are filing into a restricted case type (Adoption, Emergency Evaluation, Extreme Risk Protective Order (ERPO), Guardianship, Juvenile, Gender Declaration), you must file a Notice Regarding Restricted Information Pursuant to Rule 20-201.1 (form MDJ-008) with this submission.

I, María-Alejandra O'Shaughnessy, wish to file a complaint, petition, or other documents
Name of party
which I have completed and attached. I am unable to prepay the prepaid costs in this matter because of poverty.

Affidavit of Income

I respectfully submit that:

1. There are 2 family members living in my household, including myself.
   Number
   (Do not include renters or temporary guests).
2. The total gross household income (before taxes) is $ 850.00
   (total income earned by all persons in the household) per ☐ WEEK / ☒ MONTH / ☐ YEAR.
3. The gross household income (before taxes) is from the following sources
   (list amounts before taxes) per ☐ WEEK / ☒ MONTH / ☐ YEAR:

   ☒ Wages ..... $ 650.00
   ☐ Commissions/Bonuses ..... $
   ☐ Social Security/SSI ..... $
   ☐ Retirement Income ..... $
   ☐ Unemployment Insurance ..... $
   ☒ Temporary Cash Assistance ..... $ 200.00
   ☐ Alimony/Spousal Support ..... $
   ☐ Rent received from tenants ..... $
   ☐ Any Other Income *(Do not include food stamps/SNAP)* ..... $
4. I own the following property.
   (Do not list your home, one vehicle, and/or personal items in your home):

   ☐ NONE
   ☐ Real estate other than principal home ..... Value: $
   ☐ Other vehicles including boats ..... Value: $
   ☒ Bank accounts ..... Balance: $ 45.00
   ☐ Stocks or other securities ..... Value: $
   ☐ Other property (describe): _____ Value: $

RPWNC (New Case);
RPWSF (Subsequent Filing)

Case No. C-06-CR-18-999999

5. I owe the following debts:

☐ NONE

☒ Credit Card: Bank card Amount Owed: $ 900.00 Monthly Payment: $ 35.00

☐ Car Loan: _____ Amount Owed: $ _____ Monthly Payment: $ _____

☐ Other Debt: _____ Amount Owed: $ _____ Monthly Payment: $ _____

6. Other information to demonstrate my inability to prepay the required costs:

_____

_____

_____

For these reasons:

☒ I request a waiver of the prepaid costs;

☒ I do not anticipate a material change in the information provided in this request and request a final waiver of open costs at the conclusion of the action.

I understand that I may have to pay these costs at the end of the case unless the court grants a final waiver of open costs. If I haven't asked for a waiver of open costs in this request form I may request the waiver at the conclusion of the action in a separate form.

I solemnly affirm under the penalties of perjury that the contents of this document are true to the best of my knowledge, information, and belief.

_____
Party Signature

410-555-0199
Telephone / Fax

María-Alejandra O'Shaughnessy
Party Name

maria.oshaughnessy@example.org
E-mail

1188 Upper Coastal Crossing Road, Apt 14B
Address

_____
Date

Westminster, MD 21157-2214
City, State, Zip

Attorney Certification (*To be completed by your lawyer, if you are represented*).

I, _____, certify that to the best of my knowledge, information,
Name of Attorney
and belief, there is a good ground for this claim, application, or request for process, and it is not interposed for any improper purpose or delay.

On behalf of: _____
Name of party

_____ _____ _____
Attorney Signature | Attorney Number | Telephone / Fax

_____ _____
Attorney Name | E-mail

_____ _____
Address | Date

_____
City, State, Zip

☒ **CIRCUIT COURT** ☐ **DISTRICT COURT OF MARYLAND FOR** Carroll County (CC)
City/County

Located at 55 North Court Street, Westminster, MD 21157 Telephone 410-386-8720
Court Address

Case No. C-06-CR-18-999999

IN THE MATTER OF: State of Maryland vs. María-Alejandra O'Shaughnessy
Petitioner/Plaintiff Respondent/Defendant

ORDER REGARDING REQUEST FOR WAIVER OF PREPAID COSTS

Upon consideration of the Request for Waiver of Prepaid Costs submitted by María-Alejandra O'Shaughnessy, and any further documentation as required or authorized by Rule 1-325 or other applicable law,
Name of party

THE COURT FINDS THAT:

The party named above:

☐ Meets the financial eligibility guidelines of the Maryland Legal Services Corporation.

☐ Does NOT meet the financial eligibility guidelines.

The party named above:

☐ Is unable by reason of poverty to pay the prepaid costs.

☐ Is NOT unable by reason of poverty to pay the prepaid costs.

The claim, appeal, application or request for process:

☐ Does NOT appear, on its face, to be frivolous.

☐ Does appear, on its face, to be frivolous.

☐ Other findings: _____

THE COURT ORDERS that the waiver is:

☐ GRANTED

☐ GRANTED in part and the plaintiff/petitioner shall prepay the following portion of the filing fee:

$_____ by _____.
Date

☐ DENIED. You have 10 days from the date of this order to pay the costs. If the unwaived costs are not paid in full within 10 days, the pleading or papers filed will be considered withdrawn.

_____ _____ _____
Date Judge ID Number

☐ **SUPREME COURT OF MARYLAND** ☐ **APPELLATE COURT OF MARYLAND**

☒ **CIRCUIT COURT** ☐ **DISTRICT COURT OF MARYLAND FOR** Carroll County (CC)
City/County

Located at 55 North Court Street, Westminster, MD 21157
Court Address

STATE OF MARYLAND
OR
Plaintiff/Petitioner

vs.

Telephone 410-386-8720

Case No. C-06-CR-18-999999

María-Alejandra O'Shaughnessy
Defendant/Respondent

NOTICE REGARDING RESTRICTED INFORMATION PURSUANT TO RULE 20-201.1

→**Please DO NOT use this form to file into the following case types: Adoption, Emergency Evaluation, Extreme Risk Protective Order (ERPO), Guardianship, Juvenile, Gender Declaration, or a Criminal Case in which a Motion to Transfer Jurisdiction to the Juvenile Court is pending. By rule or statute these case types are not subject to inspection.**

Title of confidential submission: Request for Waiver of Costs (CC-DC-089)

☒ 1. **RESTRICTED DOCUMENT - The entire document is not subject to inspection.**

- ☐ **Child Abuse/Neglect:** record created by an agency concerning child abuse or neglect required by statute to be kept confidential. *Rule 16-914(d); Family Law Article, § 5-707; Human Services, § 1-202 and § 1-203*
- ☐ **Disability:** Personal information about an individual with or perceived to have a disability. *General Provisions Article § 4-329*
- ☐ **Failure to Pay Rent Actions:** case records shielded pursuant to Code, Real Property Article, § 8-503. *Rule 16-914(s)*
- ☒ **Financial Information:** information about the finances of an individual, including assets, income, liabilities, net worth, bank balances, financial history or activities, or creditworthiness. *General Provisions Article, § 4-336*
- ☐ **Financial Statement:** filed pursuant to Rule 9-202, a Child Support Guidelines Worksheet filed pursuant to Rule 9-206, or a Joint Statement of Marital and Non-Marital Property filed pursuant to Rule 9-207. *Rule 16-914(l)*
- ☐ **Hearing Closed to the Public:** recording/transcript of hearing closed to the public. *Rule 16-914(g)*
- ☐ **Marital Property:** Joint Statement of Marital and Non-Marital Property. *Rule 16-914(l)*
- ☐ **Marriage License Application:** until the effective date of the license. *Rule 16-912(c)*
- ☐ **Medical Report:** or other correspondence from a doctor or health care professional. *Rule 16-914(i)*
- ☐ **Parenting Plan/Joint Statement:** prepared and filed under Rules 9-204.1 and 9-204.2. *Rule 16-914(o)*
- ☐ **Peace Order Denied/Dismissed/Consented - Shielded:** case records shielded under Courts Article § 3-1510(b). *Rule 16-914(c)*
- ☐ **Pregnancy - Marriage License Application:** certification of pregnancy of a person under 18 from doctor or nurse practitioner in an application for a marriage license. *Rule 16-912(c)*
- ☐ **Presentence Investigation Report:** (confidential until entered into evidence) *Rule 16-914(f)(6)*
- ☐ **Protective Order Denied/Dismissed/Consented - Shielded**: case records shielded under FL Article § 4-512(b)(2). *Rule 16-914(c)*
- ☐ **Record of an Administrative Agency Proceeding:** case records shielded when the Administrative Agency Restricted Information Statement indicates the record contains restricted information under Rule 20-101(r). *Rule 16-914(r)*
- ☐ **Refusal to Testify:** case record maintained under Code, Courts Article, § 9-106 of the refusal of an individual to testify in a criminal action against the individual's spouse. *Rule 16-914(f)(5)*
- ☐ **Sealed or Shielded:** (entire document) by court order. *Rule 16-941 & 16-914(k)(1)*
- ☐ **Sealing or Shielding Motion:** while pending, but not to exceed five (5) business days. *Rule 16-941 & 16-914(k)(2)*
- ☐ **Tax Returns:** state and federal tax returns. *Rule 16-914(j)*
- ☐ **Other:** _____ Rule or Statute: _____
- ☐ **DOCUMENT FROM A CONFIDENTIAL CASE TYPE FILED INTO A NON-CONFIDENTIAL CASE TYPE. Confidential Case type: ☐ Child Adoption ☐ Emergency Evaluation ☐ ERPO ☐ Guardianship of a Child ☐ Juvenile Court case record ☐ Gender Declaration ☐ Other: (explain)** _____

☐ 2. **CONFIDENTIAL INFORMATION - The document itself is subject to public inspection but contains confidential information that is not open to public inspection.**

That information consists of _____.
(Give a description of the information and not the actual restricted information.)

The information is made confidential by Rule(s) _____ or by court order dated _____.

Pursuant to Rules 20-201.1 and 1-322.1, accompanying the document is a redacted version that does not contain the confidential information.

Date

Signature

Attorney Number

410-555-0199
Telephone Number

María-Alejandra O'Shaughnessy
Printed Name

maria.oshaughnessy@example.org
E-mail

1188 Upper Coastal Crossing Road, Apt 14B
Street Address

Fax

Westminster, MD 21157-2214
City, State, Zip

Prepare and verify the actual court record

SYNTHETIC QA EXAMPLE - DO NOT FILE

This packet uses official CC-DC-CR-072D for the stated cannabis CONVICTION, not the favorable-disposition form, an early-release form, a pardon application, a sentence-reduction application or a proposed expungement order. The government has not approved this request. Any example marked synthetic is not a real person's filing.

Case C-06-CR-18-999999; María-Alejandra O'Shaughnessy; Carroll County (CC). Check the complete charging document, every disposition and sentence/supervision history. Record check: not_shown on Case Search; court-record status exists_unexpunged. Verification reference: Synthetic fixture: clerk record status supplied, not an actual clerk contact. This is supplied information, not a LegalEase database search or invented clerk contact.

Before paying or filing, verify whether the COURT record still needs relief. Criminal Procedure 10-112 removes qualifying old cannabis-only cases from the Central Repository; it does not by itself destroy the court file. Case Search can also omit cannabis cases by law. A missing search result is not proof that the court record was expunged. Ask the clerk about the actual file and any prior expungement order. Do not pay for duplicate relief where the court has already expunged it.

Your selected 072D request

SYNTHETIC QA EXAMPLE - DO NOT FILE

Selected basis: Cannabis possession with intent to distribute (Criminal Procedure 10-110(a)(2)(ii), (c)(5)). Event: summons on 2018-01-10; conviction 2018-04-02; sentence completion 2023-09-07. The selected source recital is marked from supplied confirmed facts.

Cannabis PWID requires three years after actual sentence completion under 10-110(c)(5). Earliest date from supplied facts: 2026-09-07. An intervening conviction in that period must itself be eligible before this route can proceed.

Requested charge 1: Cannabis possession with intent to distribute; CR 5-602; guilty; conviction 2018-04-02.

Other-offenses checkbox: not checked because the complete supplied inventory confirms none. Simple cannabis possession under CR 5-601 is excluded from the ordinary unit under 10-107(a), even when another charge cannot be expunged. That exception does not turn PWID under CR 5-602 into possession. This petition does not erase any unrequested non-cannabis charge. Complicated PWID units need the exact other instrument/components, not a blanket unit approval.

Finish missing information and execution

SYNTHETIC QA EXAMPLE - DO NOT FILE

All facts needed for these prepared fields have been supplied. Review each for accuracy; this is not a legal eligibility or court approval.

The defendant signs and dates 072D personally beneath its perjury affirmation only after reviewing every statement. Attorney fields are for an actual attorney and are blank in this self-represented packet. No notarization is required by this form. Do not use another person's signature, manufacture a notarial act or fill a court decision. Optional tracking, email and fax remain blank when not supplied. An overlong known value is disclosed, never clipped or silently abbreviated.

You expressly requested a prepaid-cost waiver because you cannot prepay. Submit ALL THREE pages of CC-DC-089 with the petition and the one-page MDJ-008 notice. No filing fee accompanies that request at submission. Give complete, truthful household income, assets and debts; exclude SNAP, your principal home, one vehicle and ordinary personal items as the source instructs. Never invent financial zeros or mark NONE for missing data. The financial document, not the whole criminal case, is identified as restricted. Sign/date your own request and MDJ-008 after review. Leave the attorney certification and every judicial finding/order selection blank. The judge, not LegalEase, decides. If denied or partly granted, follow the order and pay the unwaived amount within 10 days; otherwise the papers are treated as withdrawn. A prepaid waiver is not necessarily a final waiver. You separately requested a final waiver on the no-material-change assertion. Review that statement; the court decides at the end.

File and follow up

SYNTHETIC QA EXAMPLE - DO NOT FILE

File the signed petition and selected complete waiver/notice forms with Carroll County (CC), 55 North Court Street, Westminster, MD 21157, telephone 410-386-8720. File in person, by mail, or through applicable MDEC filing. Confirm local copy/payment instructions with the clerk, and retain a complete personal copy. The proper court is ordinarily where the case began; an adult transfer or appeal changes venue under 10-105(b) / 10-110(b). The supplied venue must match the actual docket; do not infer it from your present residence.

The COURT serves the State's Attorney and sends notice to each listed victim using the court file. A timely State's Attorney or victim objection within the statutory 30-day period leads to a hearing. You do not contact the victim or certify the court's notice.

A court order is still required. No response, filing receipt or software success proves expungement. Unless stayed on appeal, custodians must report compliance within 60 days of the order; retain each actual certificate and ask the clerk about missing compliance. Keep the complete case record before expungement because copies may later be unavailable.

Stop this initial self-help preparation for a real objection/hearing, disputed restitution or conviction facts, an unresolved mixed unit, or an appeal/transfer whose court is uncertain. A demonstrated inability to pay restitution is not automatically treated as disqualification; the court considers the actual evidence. Preserve documents for an attorney or the Maryland Court Help Center (410-260-1392). Expungement does not necessarily remove privately retained records or resolve federal/immigration disclosure duties. Get immigration advice before destroying or losing access to needed records.

Sources and packet contents

SYNTHETIC QA EXAMPLE - DO NOT FILE

Complete official components: CC-DC-CR-072D; CC-DC-089; MDJ-008. All source pages are present; separate companion pages are instructions, not filed pleadings or substitutes for official documents. No proposed expungement order, fee-waiver grant, court certificate, general release or authentic criminal-history report is fabricated.

Primary authorities: Criminal Procedure 10-105(a)(11)-(12), (b)-(f); 10-110(a)(2)(ii), (b)-(h); 10-107(a)-(b); 10-112. Current Judiciary adult-expungement fee page resolves the old internal free/$30 uncertainty for 072D guilty dispositions. Current filing-fee-waiver page and CC-DC-089 require the conditional MDJ-008. Review date: September 7, 2026.

Official form: https://www.mdcourts.gov/sites/default/files/court-forms/ccdccr072d.pdf ; fee/process: https://www.mdcourts.gov/legalhelp/expungement ; costs: https://www.mdcourts.gov/legalhelp/filingfeewaivers ; statutes: https://mgaleg.maryland.gov/mgawebsite/Laws/Statutes .